



CHAPTER cxxvi.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Hatfield (Yorks) Gas Swansea Gas West Kent Gas and Elham Valley Water. A.D. 1912.
[7th August 1912.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict. c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas and Water Orders Confirmation Act 1912. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation of Orders in schedule.

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A.D. 1912.

SCHEDULE.

LIST OF ORDERS.

HATFIELD (YORKS) GAS.—Order empowering the Hatfield (Yorks) Gas Light and Coke Company Limited to maintain and continue gas-works and to manufacture and supply gas within the parishes or townships of Hatfield and Stainforth in the west riding of the county of York.

SWANSEA GAS.—Order empowering the Swansea Gas Light Company to construct and maintain further works for the manufacture and storage of gas.

WEST KENT GAS.—Order empowering the West Kent Gas Company to construct and maintain further works for the manufacture and storage of gas.

ELHAM VALLEY WATER.—Order authorising the Elham Valley Water Company Limited to raise additional capital.

HATFIELD (YORKS) GAS.

A.D. 1912.

Order empowering the Hatfield (Yorks) Gas Light and Coke Company Limited to maintain and continue gasworks and to manufacture and supply gas within the parishes or townships of Hatfield and Stainforth in the west riding of the county of York.

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(Yorks).*

1. This Order may be cited as the Hatfield (Yorks) Gas Order Short title.
1912.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order) Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by " the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and the provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order. Incorpora-
tion of Acts.

4. In this Order the expression "the authorised rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued. Interpreta-
tion.

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Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parish of Hatfield (including Hatfield Woodhouse) and the parish or township of Stainforth both in the west riding of the county of York.

Undertakers.

Undertakers.

6. The Hatfield (Yorks) Gas Light and Coke Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

Capital.

7. The share capital of the Undertakers for the purposes of the undertaking shall not exceed seven thousand five hundred pounds consisting of the original capital of one thousand six hundred and sixty pounds already raised by the Undertakers (in this Order referred to as "the original capital") and of additional capital (in this Order referred to as "the additional capital") to be issued subject to the provisions of this Order not exceeding five thousand eight hundred and forty pounds including any premiums which may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes further additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital to
be sold by
auction or
tender.

8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply and to the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

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(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds: A.D. 1912.

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

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(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock of the Undertakers in manner prescribed by a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

9. Except as by this Order specially provided the Undertakers shall not in any year make out of their profits any larger dividends on their capital than the following (in this Order referred to as "the standard rate of dividend") namely seven pounds ten shillings in respect of every one hundred pounds of the original capital and seven pounds ten shillings in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary shares or stock and five pounds in respect of every one hundred pounds actually paid up or so much of the additional capital as may be issued as preference shares or stock.

Limit of
dividend on
capital.

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Dividends on
different classes
of shares or
stock to be paid
proportionately.

Limit of
borrowing
powers.

10. In case in any year or (if the Undertakers declare a dividend half-yearly) in any half year the funds of the Undertakers applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each such class.

11. The amount of all money borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one third of the amount of the share capital of the Undertakers actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Purchase of Land.

Power to
purchase
additional
land.

12. The Undertakers may for the purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and hold in addition to the lands shown on the map deposited for the purposes of this Order and described in the Schedule A to this Order annexed any lands which they may require Provided that they shall not create or permit a nuisance on any such lands and that they shall not at any time hold for such purposes more than three acres of land in the whole including the lands described in the said schedule.

Supply of Fittings.

Power to
supply gas
fittings
Fittings
not to be
subject to
distress.

13.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

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*Maintenance and Continuance of Gasworks—Manufacture
and Sale of Gas Coke and Residual Products.*

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14. The Undertakers may on the lands shown on the map deposited for the purposes of this Order and described in Schedule A to this Order annexed while they are possessed of the same maintain and continue alter and enlarge renew or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storage of gas and of coke and other residual products obtained in the manufacture of gas by them and matters producible therefrom and they may subject to the provisions of this Order make and store gas on such lands and supply and sell the same within the limits of supply and may on the same lands manufacture and store coal-tar coke pitch asphaltum ammoniacal liquor oil and all such other residual products and matters producible therefrom as aforesaid and may sell and dispose of the same at the works and elsewhere and may also construct and maintain alter enlarge extend and renew or discontinue houses offices buildings and other works connected with the undertaking.

Under-
takers may
maintain
and continue
gasworks on
lands de-
scribed in
Schedule A
and may
make and
sell gas &c.

15. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of any product obtainable in or arising from such manufacture or production or from the materials used therein.

Power to
take licences
for patents
&c.

16. In executing the works and exercising the powers by this Order authorised so far as they affect main roads and county bridges of the west riding of the county of York the following provisions for the protection of the county council of the said west riding (in this section called "the county council") shall have effect unless otherwise agreed on in writing between the county council and the Undertakers (that is to say):—

For pro-
tection of
West Riding
County
Council.

- (1) All mains pipes or works to be laid in or along any main road shall be constructed and laid in such position at the side thereof as the county council shall by writing under the hand of their surveyor direct and shall not be constructed or laid in upon or across any county or main road bridge or any arch connected therewith but shall be carried over the stream crossed by such bridge by means of wrought

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iron riveted tubing (or other suitable method to be agreed on between the parties) entirely separate from and independent of such bridge or arch and the gradient of such bridge and of the respective approaches thereto shall not be altered. Provided that this subsection shall not apply to service pipes:

- (2) All works to be constructed or laid in along or across or in any way affecting any main road or county or main road bridge or any approach thereto shall be executed at the expense of the Undertakers under the superintendence if the same be given and to the reasonable satisfaction of the said surveyor and (except in the case of service pipes) in accordance with plans sections and specifications to be submitted to and reasonably approved of by him in writing before the commencement of any such work except in case of emergency when the Undertakers may proceed forthwith with the work after giving such notice as the circumstances admit. Provided that if the said surveyor shall not within twenty-one days after the said plans sections and specifications shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof:
- (3) The works shall be so executed as not in any way to stop or unreasonably interfere with the traffic of any main road or county or main road bridge or any approach thereto and all such works shall be proceeded with and completed with all possible despatch:
- (4) Notwithstanding anything in this Order contained it shall be lawful for the county council at any time or times to divert widen or improve any such main road and also to remove alter widen or renew any such county or main road bridge or the approaches thereto in alongside or near to which any such mains pipes or works are carried in the same manner as they might have diverted widened or improved removed altered or renewed any such main road or bridge or the approaches thereto if this Order had not been passed and such mains pipes or works had not been constructed or laid in over alongside or near to such main road or bridge respectively without making any compensation to the Undertakers for any expense or loss to which they may be put in consequence of such diversion widening improvement removal alteration or renewal. And in the event of any such main road or bridge or the approaches thereto in alongside or near to which such mains pipes or works are

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laid being diverted widened or improved removed altered or renewed as aforesaid the Undertakers shall at their own expense as and when requested by the said surveyor remove or alter the position of their said mains or pipes and the works by which the same are carried alongside or near to any such main road or bridge or the approaches thereto as aforesaid and replace the same to the satisfaction of the said surveyor of the county council Provided that before and during such diversion widening improvement removal alteration or renewal of any such main road or bridge as aforesaid the county council shall afford at the cost of the Undertakers reasonable facilities for temporarily carrying such mains or pipes along the main road or across the stream so as not to interrupt the continuous supply of gas :

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- (5) Notwithstanding anything in this Order contained if any difference arise between the Undertakers and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an arbitrator to be agreed upon or failing agreement to be appointed by the Board of Trade on the application of either of the parties in difference.

17. The following provisions for the protection of the Sheffield and South Yorkshire Navigation Company (hereinafter referred to as "the Navigation Company") shall unless otherwise agreed in writing between the Undertakers and the Navigation Company be in force and have effect and be binding on the Undertakers and the Navigation Company :—

For protection of Sheffield and South Yorkshire Navigation Company.

In carrying out any works for the maintaining of all their existing works mains pipes and apparatus and in extending or renewing the same and in laying down new works mains pipes and apparatus or other works along or across or in any way affecting the canal towing-path bridges lands or other property now or hereafter belonging to or used or occupied by the Navigation Company the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the Navigation Company and according to plans and sections to be previously submitted to and reasonably approved by him The work shall be carried out by and at the expense of the Undertakers and all such works matters and things shall be constructed executed and done so as not to cause any injury to such canal towing-path bridges lands or other property of the Navigation Company or interruption to the passage or conduct of the traffic on such canal And if any injury or interruption shall arise from or

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be in any way caused by any of the acts operations matters and things aforesaid the Undertakers shall make compensation in respect thereof to the Navigation Company the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :

Any difference which may arise between the Undertakers and the Navigation Company under this section shall be determined by an arbitrator to be appointed failing agreement by the Board of Trade.

For protec-
tion of Great
Central
Railway
Company.

18. The following provisions for the protection of the Great Central Railway Company (hereinafter called "the railway company") shall unless otherwise agreed in writing between the railway company and the Undertakers apply and have effect (that is to say) :—

- (1) The execution of any works in the exercise by the Undertakers of the powers conferred upon them by this Order upon across or in any way affecting the railway and other property of or any road repairable by the railway company (all or any part whereof as the case may be is in this section included in the expression "the property of the railway company") shall be done and completed with all despatch after the commencement thereof under the superintendence and to the reasonable satisfaction of the engineer of the railway company and only according to such plans and sections and in such manner as shall previously be reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner hereinafter provided Provided that if such engineer shall not approve or disapprove any plans and sections so submitted to him within fourteen days after the same are delivered to him or shall refuse or neglect to superintend the work the Undertakers may proceed without the approval of the plans and sections and without the superintendence of the said engineer :
- (2) All such works shall be done by and at the expense of the Undertakers (except as in this section otherwise provided) who shall also at the like expense restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or level crossing of the railway company or the approaches thereto so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers Provided always that should the railway company elect so to do where any mains pipes or other works require to be laid renewed

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or repaired under or across any level crossing of their railway they may themselves carry out such work at the costs charges and expenses of the Undertakers but so nevertheless that any mains or pipes so laid by the railway company shall only be laid under the superintendence and to the reasonable satisfaction of the engineer of the Undertakers:

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- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the property of the railway company and so as to cause no interruption to the passage or conduct of the railway company's traffic and if any injury or interruption as aforesaid shall arise from or in any way be owing to the act or default or the works or operations of the Undertakers or to the leakage or failure of any such mains pipes or works in under or near to the property of the railway company the Undertakers shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided:
- (4) The Undertakers shall bear and on demand pay to the railway company all reasonable costs of the superintendence by them of the construction or repair of any of the works of the Undertakers affecting the property of the railway company and in the case of any level crossing being broken up all reasonable costs of watching lighting signalling and protecting the property of the railway company with reference to and during such construction or repair but such superintendence by the railway company or their neglect to superintend shall not alter or affect any liability to which the Undertakers may be subject for any accident which may be occasioned by the works or operations or by the act or default of the Undertakers or of their contractors servants or workmen or any of them:
- (5) If at any time it is found necessary in order to enable the railway company to carry out any alterations or extensions of their railways or works to alter the position of the said mains pipes or works the Undertakers shall on receiving notice in writing from the railway company so to do at their own cost and to the reasonable satisfaction of the engineer of the railway company alter the position of the said mains pipes or works so far as may be necessary to enable the railway company to carry out such alterations or extensions of their railway or works and the provisions

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of this section shall apply to the said mains pipes or works in their altered position:

- (6) Any difference arising between the Undertakers and the railway company under this section shall be determined by an engineer or other fit person to be appointed failing agreement by the Board of Trade at the request of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of North
Eastern Rail-
way Company
and Lanca-
shire and
Yorkshire
and North
Eastern
Railway
Companies.

19. The following provisions for the protection of the North Eastern Railway Company and the Lancashire and Yorkshire and North Eastern Railway Companies (hereinafter called "the railway company") shall unless with the previous consent of the railway company in writing under their common seal apply and have effect:—

- (1) All mains and pipes laid or proposed to be laid by the Undertakers under the powers of this Act over or under any bridge of the railway company shall be carried over or under the same in such a way as not to interfere with the structure of any such bridge and all other mains and pipes laid or proposed to be laid or maintained by the Undertakers under the powers of this Act which shall cross any railway of the railway company shall be carried under the same in such a way to the reasonable satisfaction of the engineer of the railway company as will admit of such mains and pipes being relaid or repaired without interference with the railway the top of any such mains or pipes or of the cover thereof in no case being nearer the bottom of the rails of the railway than three feet:
- (2) In laying and maintaining any mains pipes culverts or other works over upon or across or under any work or property of the railway company the Undertakers shall execute and maintain their works under the direction and superintendence and to the reasonable satisfaction of the engineer of the railway company and in accordance with plans drawings and specifications previously submitted to and approved by him and shall pay and make good to the railway company all loss damages and expenses which the railway company shall sustain or be put to by or in consequence of the laying maintenance or user of the said mains pipes and other works or by or in consequence of the bursting of or any other accident to any main or pipe of the Undertakers or otherwise howsoever:
- (3) If at any time it is found necessary in order to enable the railway company to carry out any alterations or extensions

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of their railway or works that the position of such mains pipes or other works shall be altered the Undertakers shall on receiving notice in writing from the railway company so to do at their own cost alter the position of the same so far as may be necessary to enable the railway company to carry out such alterations or extensions and the provisions of this section shall apply to the said mains pipes or other works in their altered position :

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- (4) If the railway company give to the Undertakers notice that they themselves desire to construct so much of the works or to carry out so much of the alterations of such mains pipes or other works as will affect any railway or work belonging to them the railway company may themselves execute such works and alterations and recover the reasonable cost thereof from the Undertakers :
- (5) Any difference arising between the Undertakers and the railway company under this section shall be determined by an engineer to be appointed failing agreement by the Board of Trade.

20. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this section shall authorise the Undertakers to lay any main or interfere with any street beyond the limits of supply.

Power to
contract for
sale of gas
in bulk.

21. If any difference arise between the Undertakers and any road authority railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Difference
with rail-
way and
other com-
panies.

Price of Gas.

22. The price to be charged by the Undertakers for gas supplied by them shall not exceed five shillings per thousand cubic feet and so in proportion for any less quantity Provided that at any time after the expiration of three years from the commencement of this Order the Board of Trade may if they think fit by order in writing to be signed by a secretary or assistant secretary of the said Board alter the said

Price of gas.

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A.D. 1912. maximum price either by substituting any other sum for the said sum of five shillings or by giving a standard price with sliding scale as to profits and as from the date specified in such order (hereinafter referred to as "the specified date") the price to be charged by the Undertakers for gas supplied by them shall be in accordance with such order. Provided further that in case such order shall prescribe a standard price with sliding scale as to profits then as from the specified date the provisions set forth in Schedule B. to this Order annexed shall be in force and have effect and this Order shall be read and construed accordingly. A copy of such order made by the Board of Trade shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

Charge for
gas supplied
by means of
prepayment
meters.

23. The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to ordinary private consumers within the limits of supply through any other kind of meter or by any other method of supply.

The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Quality of Gas.

Quality of
gas.

24.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of

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sperrn per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. A.D. 1912.

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(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within six months of the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of Gas.

25.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied and the Undertakers shall afford to the examiner all reasonable facilities for making the test.

Testing Place.

26. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place provided by the Undertakers at their works within six months of the commencement of this Order. Testing place.

Miscellaneous.

27. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same. Power to refuse to supply persons in debt for other property.

28. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being Period of error in defective meters.

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proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen only during the then last preceding quarter of the year unless it shall be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas charges are recoverable by the Undertakers.

No penalty
in case of
unavoidable
cause.

29. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Undertakers
to pay in-
terest on
deposit.

30. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any money which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Gas con-
sumers to
give notice
to Under-
takers before
removing.

31. At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer in writing or in person at the Undertakers office before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Undertakers.

Notice of
discontinu-
ance.

32. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

8 & 9 Vict.
c. 16. s. 140
incorporated.

33. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order provided that for the purpose of such incorporation the expression "the Company" in the said section shall be construed to mean the Undertakers.

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34. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

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(Yorks).

Costs of
Order.

The SCHEDULES referred to in the foregoing Order.

SCHEDULE A.

Gas Lands.

A piece of land situate in the parish of Hatfield in the county of York containing one rood and twenty perches or thereabouts upon which or some part of which the works of the Undertakers are erected and bounded on or towards the east by Cuckoo Lane and on or towards the west north and south by land belonging or reputed to belong to the Honourable Edward Francis Lindley Wood.

SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Undertakers with sliding scale as to profits and as from the specified date be read and construed subject to the modifications following:—

- (i) Sections thirty to thirty-four (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or form part of the foregoing Order and in construing the said Act for the purposes of the foregoing Order section thirty-five of the said Act shall be read and construed as though the words from “in case the whole” down to “have been paid” all inclusive had been omitted therefrom and as though the expression “the prescribed rate” included the authorised rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the special purposes fund:
- (ii) Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such Order of the Board of Trade as aforesaid per thousand cubic feet:

Sections 30
to 34 of
Gasworks
Clauses
Act 1847
shall cease
to be incor-
porated.

Price of gas
with sliding
scale as to
dividend.

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(*Yorks*).

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the share capital as follows :—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by three shillings and sixpence on every one hundred pounds of ordinary share capital with a seven and a half per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate of dividend by three shillings and sixpence on every one hundred pounds of ordinary share capital with a seven and a half per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

Power to
create a
special pur-
poses fund.

- (iii)—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund" ;
- (2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being :—
- (A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented ; or
- (B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works ;
- (3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount

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equal to one-tenth part of the paid-up capital of the Undertakers including premiums ;

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Hatfield
(Yorks).

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other ;

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section :

(iv) If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year :

Application
of excess of
profits over
authorised
rates of
dividend.

Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rates :

(v) Where in any year the dividend of the Undertakers on the ordinary share capital or stock of the Undertakers shall exceed the standard rate by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividend the Undertakers may in such year set apart such sum as they think fit and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the specified date in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the dividend at the authorised rates on the ordinary capital of the Undertakers and save as by this schedule specially provided no sum shall in respect of the

Power to
create a
reserve fund
and applica-
tion thereof.

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Hatfield
(*Yorks*).

Saving of
existing
contracts.

undertaking in any year be carried by the Undertakers to any reserve fund:

- (vi) Nothing in this schedule contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the specified date with respect to the gasworks of or the supply of gas by the Undertakers.

SWANSEA GAS.

Swansea.

Order empowering the Swansea Gas Light Company to construct and maintain further works for the manufacture and storage of gas.

Short title.

1. This Order may be cited as the Swansea Gas Order 1912.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed.

Incorpora-
tion of Acts.

3. The provisions of the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 are hereby incorporated with this Order.

Interpreta-
tion.

4. The several words terms and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the further works for the manufacture and storage of gas and works connected therewith by this Order authorised to be constructed.

Undertakers.

5. The Swansea Gas Light Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers
may con-
struct gas-
works on
lands de-
scribed in
schedule.

6. The Undertakers may on the lands shown on the map deposited for the purposes of this Order and described in the schedule to this Order annexed while they are possessed of the same construct erect maintain extend and enlarge gasholders apparatus and works for the manufacture and storing of gas and matters producible therefrom and they may subject to the provisions of this Order upon the said lands manufacture and store gas and supply and sell the same within the limits within which they are authorised to supply gas and may manufacture sell provide supply and deal in coke tar and all other residual products or refuse of any materials employed in or resulting

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Act, 1912.

from the manufacture of gas and they may construct and maintain and alter enlarge and renew or discontinue houses offices buildings and other works connected with the undertaking. A.D. 1912.
Swansea.

7. The Undertakers (notwithstanding anything in any Act or Order relating to their undertaking or any part thereof) shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance or repair of gas fittings. As to purchase of materials.

8. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers. Costs of Order.

The SCHEDULE referred to in the foregoing Order.

Gas Lands.

A piece or parcel of land being a part of the Forest Farm belonging or reputed to belong to His Grace the Duke of Beaufort containing twenty-five acres two roods thirteen poles or thereabouts situate in the parish of Llansamlet and county borough of Swansea in the county of Glamorgan bounded on the north by the Duffryn Steel and Tin Plate Works on the south by a further part of the Forest Farm aforesaid on the east by the brook known as Nant-y-Fendrod and on the west partly by the Morryston branch of the Midland Railway and partly by the works known as the Lower Forest Iron Foundry.

WEST KENT GAS.

Order empowering the West Kent Gas Company to construct and maintain further works for the manufacture and storage of gas. West Kent.

1. This Order may be cited as the West Kent Gas Order 1912 and the West Kent Gas Act 1867 and this Order may be cited together as the West Kent Gas Act and Order 1867 and 1912. Short titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed. Commencement of Order.

3. The provisions of the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 are hereby (except where the same are expressly Incorporation of Acts.

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Act, 1912.

- A.D. 1912. varied by this Order) incorporated with this Order: Provided that
West Kent. section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.
- Interpretation. 4. The several words terms and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the further works for the manufacture and storage of gas and works connected therewith by this Order authorised to be constructed.
- Undertakers. 5. The West Kent Gas Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."
- Undertakers may construct gas-works on lands described in schedule. 6. The Undertakers may on the lands shown on the map deposited for the purposes of this Order and described in the schedule to this Order annexed while they are possessed of the same construct erect maintain extend and enlarge gasholders apparatus and works for the manufacture and storing of gas and matters producible therefrom and they may subject to the provisions of this Order upon the said lands manufacture and store gas and supply and sell the same within the limits in which they are authorised to supply gas and they may manufacture sell provide supply and deal in coke tar and all other residual products or refuse of any materials employed in or resulting from the manufacture of gas and they may construct and maintain and alter enlarge and renew or discontinue houses offices buildings and other works connected with the undertaking.
- As to purchase of materials. 7. The Undertakers (notwithstanding anything in the West Kent Gas Act 1867 or in this Order) shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance or repair of gas fittings.
- Costs of Order. 8. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

[2 & 3 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. cxxvi.]
Act, 1912.

The SCHEDULE referred to in the foregoing Order.

A.D. 1912.

West Kent.

Gas Lands.

A piece or parcel of land belonging to the Undertakers containing 5 acres 0 rood 14½ perches or thereabouts situate in the parish of Erith in the county of Kent bounded on the north-west by the road running between West Street and the footpath on the river wall and by Bailey's Cottages on the south-east by land now occupied by the works of the Undertakers on the north-east by the River Thames and on the south-west by West Street Erith.

ELHAM VALLEY WATER.

*Order authorising the Elham Valley Water Company Limited
to raise additional capital.*

*Elham
Valley.*

1. This Order may be cited as the Elham Valley Water Order 1912 and the Elham Valley Water Order 1904 (in this Order referred to as "the Order of 1904") and this Order may be cited together as the Elham Valley Water Orders 1904 and 1912. Short titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of
Order.

3. The Elham Valley Water Company Limited the successors of the Undertakers named in the Order of 1904 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

4. The limitation prescribed by section 7 of the Order of 1904 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising further share capital not exceeding two thousand pounds Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole nine thousand five hundred pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament. Additional
capital.

5. The limitation prescribed by section 8 of the Order of 1904 with respect to the amount of money which the Undertakers may Limit of
borrowing
powers,

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A.D. 1912. borrow upon the security of the undertaking shall not prevent the Undertakers from borrowing upon such security any sums of money not exceeding one-third of the amount at the time actually raised by the issue of shares or stock. No higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any money borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

*Elham
Valley.*

Costs of
Order.

6. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

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